

BEFORE THE COLORADO BOARD OF LICENSED PROFESSIONAL COUNSELOR
EXAMINERS

STATE OF COLORADO

CASE NOS.: 2010-003254 & 2010-004820

STIPULATION AND FINAL AGENCY ORDER

IN THE MATTER OF DISCIPLINARY PROCEEDINGS REGARDING THE LICENSE
TO PRACTICE PROFESSIONAL COUNSELING IN THE STATE OF COLORADO OF
NITA ANDREWS, LICENSE NO.: LPC 546,

Respondent.

IT IS HEREBY STIPULATED by and between the Colorado Board of Licensed
Professional Counselor Examiners ("Board") and Nita Andrews ("Respondent") as follows:

1. The Board has jurisdiction over the person of Respondent and the subject matter of this Stipulation and Final Agency Order ("Order").
2. Respondent was licensed to practice as a professional counselor in the State of Colorado at all times relevant herein.
3. This Order is a full and final resolution of Case Numbers 2010-003254 & 2010-004820. This Order does not resolve any other cases, complaints, or matters, known or unknown to the Board or Respondent, as of the effective date of this Order.
4. Respondent admits the following:
 - a. On or around July 2007, Respondent began a nine-month affair with a client.
5. By virtue of the facts admitted in paragraph 4 above, the Board finds that Respondent violated §12-43-222(1)(g), (i), and (r), C.R.S.

PERMANENT RELINQUISHMENT

6. Respondent hereby permanently relinquishes her license and the right to practice as a professional counselor in the State of Colorado, commencing from the effective date of this Order, and requests that the Board accept said relinquishment. Such relinquishment shall have the same force and effect as a revocation ordered by the Board. Respondent agrees not to reapply for licensure as a professional counselor in Colorado.

7. Following relinquishment of her license, Respondent shall not perform any act requiring a license to practice.

TERMS AND CONDITIONS

8. Respondent is fully aware of and understands the right to receive a formal notice of hearing and charges and to have a formal disciplinary hearing, pursuant to § 12-43-224, C.R.S.; and hereby waives those rights. Further, Respondent also acknowledges that this waiver constitutes a waiver of all rights to appeal in this matter.

9. This Order is entered into by Respondent voluntarily and without coercion, after an opportunity to consult with counsel and with full understanding of the legal consequences of this Order and the right to formal hearing on all matters herein.

10. The Order entered pursuant to this Stipulation and Final Agency Order shall constitute a Board order for purposes of §12-43-222, C.R.S., and shall have the same force and effect as an order entered after a formal disciplinary hearing pursuant to §12-43-224, C.R.S.

11. This Order constitutes the entire agreement between Respondent and the Board. There are no other promises expressed or implied. In the event that any provision of this Order is deemed unenforceable by a court of competent jurisdiction, such provision shall be severed, and the remainder of this Order shall be given full force and effect.

12. This Order shall become effective when accepted and signed on behalf of the Board.

13. This Order shall be a public record in the custody of the Board.

RESPONDENT



NITA ANDREWS
License No. LPC 546

Dated: October 26, 2010

**COLORADO BOARD OF LICENSED
PROFESSIONAL COUNSELORS**



MARK MERRILL
Section Director

Effective Date: This 5th day of

November, 2010.